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July 18, 2018					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

ORDER ON MOTION TO EXTEND TIME

On May 31, 2018, an order was issued denying requests to file an amended complaint and to conduct additional discovery and revising the scheduling order with the first brief scheduled to be filed on July 9, 2018, by Complainant Port Elizabeth Terminal & Warehouse Corp. ("PETW"). PETW did not file their brief. Instead, on July 13, 2018, PETW filed a motion to extend time to file the proposed findings of fact and conclusions of law until after the Commission has ruled on Complainant's exceptions to the April 17, 2018, initial decision. On July 16, 2018, Respondent The Port Authority of New York and New Jersey ("Port Authority") filed an opposition to the motion to extend time.

PETW's motion is essentially a motion to reconsider the May 31, 2018, revised scheduling order and a motion to stay the proceedings while the April 17, 2018, initial decision granting the motion to partially dismiss the complaint is pending before the Commission. PETW does not explain why the motion was not filed until after the July deadline had passed for filing its brief. In the alternative, PETW requests a ten-day extension to file the proposed findings of fact, conclusions of law, and appendix.

The Port Authority asserts that the motion should be denied because the request for an extension is untimely, there is not good cause for the delay in making the request, and the arguments are without merit. The Port Authority requests that the motion to extend the deadline be denied.

PETW's motion was not timely, reiterated previously denied arguments, and did not present good cause to reconsider the findings in the revised scheduling order or to stay the proceedings. However, the Port Authority's request that the motion be denied would prevent resolution of the remaining claims on the merits. Accordingly, the deadline for filing briefs will be briefly extended.

For the reasons stated above, it is hereby:

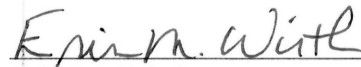
ORDERED that the parties abide by the following revised briefing schedule:

July 30, 2018 Complainant files brief, proposed findings of fact, and appendix.

Aug. 30, 2018 Respondent files opposition brief, proposed findings of fact, appendix, and responses to Complainant's proposed findings of fact.

Sept. 14, 2018 Complainant files reply brief and responses to Respondent's proposed findings of fact.

The parties should follow the remaining requirements for filings in the May 31, 2018, revised scheduling order.



Erin M. Wirth

Administrative Law Judge